

Assessing the *needs* of a child.

An Executive Frame™ guide for separation lawyers — integrating neurosequential development, executive functioning, emotional intelligence, and self-determination theory.

When a lawyer is involved in separation, care arrangements, guardianship disputes, or Family Court matters, the central question is often the same.

| "What does this child need to *thrive*?"

The Executive Frame™ provides a useful structure because it shifts the focus away from parental positions and towards the child's developmental needs. What follows is a four-step sequence — nervous system, emotional intelligence, executive functioning, and psychological needs — with the questions that open each one up, an assessment checklist, and a formulation you can carry into a Family Court context.

THE FOUR STEPS

01 · Nervous system

What does the child's nervous system need right now?

03 · Executive functioning

The scaffolding adults provide.

02 · Emotional intelligence

Awareness and regulation of feeling.

04 · Self-determination

Relatedness, competence, autonomy.

STEP ONE

Start with the *neurosequential* question.

Before asking "*What does the child want?*", ask: "**What does this child's nervous system need right now?**" Children experiencing separation often move into survival states. The first assessment is not legal — it is developmental.

Is the child feeling safe?

SIGNS OF HYPERAROUSAL — FIGHT / FLIGHT

- Anxiety
- Aggression
- Emotional outbursts
- Defiance
- Sleep difficulties
- Excessive worry

SIGNS OF HYPOAROUSAL — FREEZE

- Withdrawal
- Numbness
- Reduced communication
- Low motivation
- Flat affect
- Appearing disconnected

QUESTIONS

- › How has the child changed since separation?
- › How are they sleeping?
- › What happens during transitions?
- › What behaviours increase after contact?
- › What behaviours improve when routines are predictable?

STEP TWO

Assess *emotional intelligence* needs.

Emotional awareness

Can the child identify and communicate emotions?
Younger children often express emotions through behaviour rather than words.

- › How does the child show they are upset?
- › What emotions do they find hardest to manage?
- › What worries do they express?
- › How does the child make sense of the separation?

Emotional regulation

Observe for tantrums, emotional flooding, anxiety, excessive reassurance-seeking, and self-blame.

Key question. Is the child being asked to manage emotions that should be managed by adults? This is common in high-conflict separations.

STEP THREE

Assess *executive functioning* needs.

Children require adults to provide executive functioning externally. When families separate, this scaffolding often becomes disrupted.

ORGANISATION

- › Are routines consistent across homes?
- › Does the child know what is happening next?
- › Are school requirements being met?

WORKING MEMORY

- › Does the child remember instructions?
- › Are they expected to carry messages between parents?

Children should never become communication systems.

Executive functioning, *continued*.

EMOTIONAL SELF-REGULATION

- › Who helps the child calm down?
- › What strategies are used during distress?
- › Are both households responding consistently?

PLANNING & PREDICTABILITY

Children thrive when they can predict where they will sleep, who will collect them, and what routines exist. Uncertainty creates stress on the nervous system.

STEP FOUR

Assess *self-determination* needs.

According to Self-Determination Theory, children require relatedness, competence, and autonomy.

Relatedness

Does the child feel connected?

- › Who does the child turn to for comfort?
- › Who makes them feel safe?
- › Which relationships are most important?

Warning signs. Loyalty conflicts · parentification · alienation dynamics · pressure to choose sides.

Competence

Does the child feel capable?

- › How is school functioning?
- › Are they maintaining friendships?
- › Do they feel successful anywhere?

Autonomy

Does the child have an age-appropriate voice? This is not "*the child decides*." Instead: "**the child's experience matters.**"

- › Does the child feel heard?
- › Can they express preferences safely?
- › Are adults listening without burdening them?

What this child *needs*.

A working checklist. Tick what is present, and note what is missing.

SAFETY — WHAT HELPS THE CHILD FEEL SAFE?

- ☐ Consistent routines
- ☐ Predictable contact
- ☐ Stable caregiving
- ☐ Reduced conflict
- ☐ Clear communication

EMOTIONAL — WHAT HELPS THEM REGULATE?

- ☐ Validation
- ☐ Emotional coaching
- ☐ Safe attachment figures
- ☐ Opportunities for expression

EXECUTIVE FUNCTION — WHAT HELPS THEM FUNCTION?

- ☐ Consistent expectations
- ☐ Organised routines
- ☐ Homework support
- ☐ Transition planning
- ☐ Reduced cognitive load

PSYCHOLOGICAL — WHAT HELPS THEM THRIVE?

- › **Relatedness** — who helps them feel loved?
- › **Competence** — where do they experience success?
- › **Autonomy** — how are their views heard?

Questions for parents

Instead of "Why should the child live with you?", ask:

- › **Safety.** What do you do that helps your child feel safe?
- › **Regulation.** How do you know when your child is overwhelmed?
- › **Attachment.** Who does your child seek when distressed?

- › **Executive functioning.** How do you support routines and transitions?
- › **Emotional development.** What emotions does your child struggle with most?
- › **Self-determination.** What helps your child feel capable and confident?

Putting it into *words*.

A lawyer using the Executive Frame™ might summarise the child's needs like this.

NERVOUS SYSTEM NEEDS

The child requires predictable routines, reduced exposure to parental conflict, and emotionally responsive caregiving to support regulation.

EMOTIONAL NEEDS

The child requires caregivers who can co-regulate distress and support emotional expression without placing adult concerns onto the child.

EXECUTIVE FUNCTION NEEDS

The child benefits from consistent routines, coordinated communication between caregivers, and reduced responsibility for managing adult issues.

PSYCHOLOGICAL NEEDS

The child's wellbeing is supported when their needs for relatedness, competence, and age-appropriate autonomy are prioritised.

THE CORE QUESTION

In separation matters, avoid asking "*What arrangement is fairest for the adults?*" Instead ask:

"What arrangement best supports this child's nervous system, emotional development, executive functioning, and psychological *wellbeing*?"

That question aligns closely with both the Neurosequential Model and the Executive Frame™, and often leads to a much clearer understanding of the child's actual needs.